

BC664654 BC664654

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This case is presently set for trial early next year. The case had previously been in trial, but the court had to declare a mistrial at plaintiff's request. At the hearing in which the mistrial was granted, the court noted that the effect of the mistrial was to re-open discovery, including expert discovery. However, it was still necessary.

At issue is a motion by the defense to compel a second day of deposition for plaintiff's expert, Dr. Ward.

Dr. Ward was initially deposed in July 2022. At that time, she stated that she would give her best testimony on that date but noted that she had recently received additional documents. Although she had reviewed them, she was not confident that a closer review would not cause her to change her opinions or cause her to have new opinions. Defendant stated that if that were to occur, defendant would want to take an additional day of deposition and asked that if Dr. Ward did change the opinion, that defendant be notified. Dr. Ward did add to her opinion, and plaintiff did give defendant timely notice of that. Yet defendant did not seek to re-depose Dr.

Ward until right before the trial. The court denied defendant's motion to take the deposition so near the trial date, finding that defendant had waived that right by not seeking to take the deposition after plaintiff had given timely notice of the development. Defendant really had no reason for not moving sooner, and the court believed that taking the deposition on the eve of trial would be prejudicial to plaintiff.

However, as stated above, that trial ended in a mistrial at plaintiff's request in October 2025.

Defendant states that in February 2026, defendant renewed

its request for an additional day of Dr. Ward's deposition. Plaintiff has refused to allow it. Plaintiff states that she understands that

discovery re-opens upon the mistrial, but she states that defendant misses the point. Even with renewed discovery, a witness may only be deposed once without leave of court, and that one-deposition-per-person rule continues to apply after a mistrial. Therefore, plaintiff states, the fact that discovery re-opened does not give defendant the right to another day with Dr. Ward.

The court is inclined to GRANT the motion. Plaintiff is correct as to the one day rule, but it is not inflexible. In fact, it was waived by the parties on the first day of deposition, and even if it were not, it is subject to exception upon good cause shown. Here, Dr. Ward is going to give new and different opinions based on materials reviewed more closely after the first day of deposition. That is cause for a second day. The earlier request was not denied because a second day was improper; it was denied because defendant waited until the eve of trial to request it, and given the proximity to the trial, plaintiff had demonstrated prejudice. That is no longer the case. The court sees no prejudice in allowing the second day of testimony. That is especially so given that defendant must bear the costs associated with the additional day. That includes not only the regular deposition costs, but also the expert's fee.

The court also notes that it is somewhat swayed by the fact that ever since attorney Shafer came into the case, defendant has been very accommodating to plaintiff. Defendant has agreed to extend the 5 year rule, defendant has been forthcoming in discovery, and defendant has extended numerous professional courtesies. Had defendant been playing hard ball with a self-represented litigant, the court might still have granted the motion, but on the other hand Where defendant has acted in a civil and cooperative manner, the court is all the more inclined to agree that when the shoe is on the other foot, similar courtesies be extended. And, finally, there is something about avoiding trial by ambush as a policy that courts favor. While the court recognizes that there is no excuse for the delay between 2022 and the first trial, the interests of justice strongly favor allowing defendant to know what plaintiff's expert will say.

The motion is GRANTED.
The parties will meet and confer to arrive at a mutually convenient

date. If the parties cannot just agree on a date, plaintiff will offer five dates between October 30, 2026, and November 30, 2026. The dates should all be normal working dates, and the dates ought to be provided no later than September 30, 2026. Defendant may pick any of those five dates and will do so within 5 court days of receiving plaintiff's list.